

CRIMINAL CONVICTION OR FOUNDED COMPLAINT OF CHILD ABUSE OR NEGLECT OF APPLICANTS FOR EMPLOYMENT

The Loudoun County School Board will not hire any applicants that are determined to be unsuited for service by reason of criminal conviction or founded complaints of child abuse and neglect.

A. Applicants for Employment

1. All applicants for employment, whether full-time or part-time, permanent or temporary, shall be subject to a background investigation, which includes a check of employment history as well as a release of criminal and investigatory information possessed by any state, local or federal agency. Other areas of inquiry shall include criminal convictions, involvement in drug/alcohol abuse, and a search of the registry of founded complaints of child abuse and neglect maintained by the Department of Social Services.

2. All applicants for employment, whether full-time or part-time, permanent or temporary, shall certify:

- a. That the applicant has not been convicted of a felony or any offense involving the sexual molestation, physical or sexual abuse or rape of a child; and
- b. Whether the applicant has been convicted of any misdemeanor and if so convicted, the applicant shall provide full particulars thereof.

3. All such applicants for employment shall certify that the applicant has not been the subject of a founded case of child abuse and neglect.

4. Criminal Convictions. All applicants who are offered or accept employment with the Loudoun County School Board shall submit to fingerprinting and shall provide personal descriptive information to be forwarded along with the applicant's fingerprints through the Central Criminal Records Exchange to the Federal Bureau of Investigation for the purpose of obtaining criminal history record information regarding such applicant. Satisfactory report of this record check is a condition of employment.

5. Founded Complaints of Child Abuse and Neglect

- a. All applicants who are offered or accept employment shall provide written consent and the necessary personal information for the School Board to obtain a search of the registry of founded complaints of child abuse and neglect maintained by the Department of Social Services. In addition, where the applicant has resided in another state within the last five years, the school board shall require as a condition of employment that such applicant

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provide written consent and the necessary personal information for the School Board to obtain information from each relevant state as to whether the applicant was the subject of a founded complaint of child abuse and neglect in such state. The School Board shall take reasonable steps to determine whether the applicant was the subject of a founded complaint of child abuse and neglect in the relevant state. Satisfactory reports of these registry searches are a condition of employment.

- b. If the information obtained pursuant to section A.6. of this policy indicates that the applicant is the subject of a founded case of child abuse or neglect, such applicant shall be denied employment, or the employment offer shall be rescinded.

6. Any applicant for employment making a materially false statement regarding his or her criminal history or child abuse record shall be subject to denial of employment, or dismissal if already employed. Any person making a materially false statement regarding a finding of child abuse and neglect shall be guilty of a Class 1 misdemeanor and upon conviction, the fact of said conviction shall be grounds for the State Board of Education to revoke such person's license to teach.

[Former Policy 7-11]
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Legal Refs: Code of Virginia §§ [19.2-83.1](#); [19.2-392.02](#); [22.1-296.1](#); [§22.1-296.2](#); [§22.1-296.4](#); [22.1-78](#)

Cross Refs: Policy [7550](#) Drug- and Alcohol-Free Workplace, Policy [7310](#) Staff Discipline